Terms of Service

Individual, squad, and agency-authorized use

1. Scope and relationship of agreements

These Terms govern access to the NarrateEMS Chrome extension, website, and related services. Individuals may subscribe under an Individual Subscription Agreement; agency-purchased arrangements may use a separate signed order form. An EMS agency may approve individual-paid use without undertaking any payment obligation. For protected health information (PHI), the applicable BAA controls over inconsistent terms.

2. Documentation assistance; no clinical substitution

NarrateEMS converts spoken or typed information into proposed structured ePCR documentation for supported EMScharts workflows. NarrateEMS does not diagnose, treat, or replace professional judgment. Providers must review, verify, correct, and approve all generated content, including populated fields, before submitting the official patient care record. Errors, omissions, delays, and inaccurate or contextually inappropriate AI content can occur.

3. Permitted use and eligibility

Users must submit truthful information, maintain confidential individual credentials, follow employer authorization and acceptable-use rules, and access only information they are permitted to access. Each agency must be separately authorized, with required BAA and verification. Users may not share accounts, submit fraudulent records, reverse engineer or abuse security controls, scrape or resell the service, or process PHI for unauthorized agencies. Access may be restricted when required permissions or contractual rights are absent.

4. Accounts, security and incident notices

Users and agencies are responsible for protecting their devices, browser profiles, ePCR credentials, and access rights. Users must follow session clear/refresh instructions on shared devices. Suspected credential compromise, unauthorized PHI exposure, or security incidents must be reported promptly to narrateems@gmail.com. NarrateEMS maintains safeguards as described in applicable agreements and policies, but no system provides absolute security.

5. Subscriptions, trial, billing, and cancellation

Individual monthly subscriptions, seven-day trials, cancellation, renewal, refunds, and fair-use rules are detailed in the Individual Subscription Agreement and checkout notices. If these Terms conflict on individual commercial terms, the Individual Subscription Agreement controls. Agency purchases, where applicable, are governed by their own signed order forms. Merely approving individual use does not obligate an agency to pay an individual's charges.

6. PHI, agency permissions, and privacy

Real PHI may be processed only for an approved agency with an effective applicable BAA and authorized user access. The applicable BAA governs permitted PHI use, disclosures, safeguards, and required reporting. The Privacy Policy describes ordinary data processing and retention. NarrateEMS may disable clinical access promptly when approval, authorization, or security conditions no longer hold.

7. Ownership, confidentiality, and feedback

NarrateEMS and its licensors retain rights in the service, software, interface, and related intellectual property. Patient records and agency information remain subject to applicable agency and patient rights; no individual Subscriber receives independent ownership of an agency's records. Users grant only the rights necessary for authorized service performance and must keep nonpublic information confidential as required by law and agreements. General product feedback may be used to improve the service, but PHI will not be intentionally used to train general-purpose AI models.

8. Availability, support, and modifications

Service relies on third-party AI/speech infrastructure, internet access, and the agency's ePCR environment. Service may be unavailable or disrupted. The Service Level Agreement describes support channels and does not promise continuous uptime unless expressly agreed in writing. Material service or contractual changes will be communicated as required by applicable law; additional consent will be obtained when legally necessary.

9. Suspension, termination, and aftermath

NarrateEMS may suspend or end access for material breach, nonpayment, security threats, unlawful or unauthorized use, or loss of agency approval, giving advance notice and a cure opportunity when feasible and appropriate. Individual billing following agency revocation is governed by the Individual Subscription Agreement. Ending an individual subscription does not automatically end an agency BAA, and applicable PHI-handling duties survive as stated in that BAA.

10. Disclaimer

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, THE SERVICE IS PROVIDED AS IS AND AS AVAILABLE. NARRATEEMS DISCLAIMS IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT, AND DOES NOT WARRANT UNINTERRUPTED OPERATION OR ACCURACY OF GENERATED DOCUMENTATION. NON-WAIVABLE STATUTORY RIGHTS ARE UNAFFECTED.

11. Limits of liability

TO THE EXTENT PERMITTED BY LAW, NARRATEEMS WILL NOT BE LIABLE FOR INDIRECT, INCIDENTAL, SPECIAL, CONSEQUENTIAL, EXEMPLARY, OR PUNITIVE DAMAGES OR LOST PROFITS, REVENUE, GOODWILL, OR DATA ARISING FROM THE SERVICE. TO THE EXTENT PERMITTED BY LAW, NARRATEEMS'S AGGREGATE LIABILITY TO AN INDIVIDUAL SUBSCRIBER UNDER THESE TERMS WILL NOT EXCEED THE AMOUNT PAID OR PAYABLE BY THAT SUBSCRIBER IN THE TWELVE MONTHS BEFORE THE CLAIM. THESE LIMITS DO NOT EXCLUDE LIABILITIES THAT CANNOT LEGALLY BE LIMITED, INCLUDING APPLICABLE STATUTORY RESPONSIBILITIES OR RIGHTS.

12. User responsibility and indemnification

To the extent legally enforceable, a user will be responsible for third-party claims arising from that user's knowing unauthorized access, intentional record falsification, or unlawful misuse of the service, except to the extent attributable to NarrateEMS's own acts or liabilities that may not lawfully be shifted. This clause does not transfer a covered entity's HIPAA compliance duties or limit statutory remedies.

13. Governing law, disputes, and contact

New Jersey law governs these Terms, without displacing mandatory rights under otherwise applicable law. Subject to non-waivable rights and jurisdictional limitations, disputes may be brought in competent state or federal courts in New Jersey. Terms may be updated with legally required notice/consent. Contact: narrateems@gmail.com. Effective date: upon adoption and publication of approved version.